GLOBAL BUSINESS SOLUTIONS
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GBS FORMS PACK

Operational Requirements — Core Templates (Forms Pack, Part 1)

Companion to the Operational Requirements Organisational Process Flow · LRA ss.189 and 189A · Code of Good Practice: Dismissal (GN 3470, GG 53294, 4 Sept 2025; replaces the 1999 operational requirements Code), items 22–24 and Annexure A · As at 19 October 2026

PREPARED FOR
[Client / Team]

PREPARED BY
Global Business Solutions

DATE
19 October 2026

VERSION
v1.1

DOCUMENT STATUS

Working document for legal review — not legal advice.

Complete all [bracketed] text before issue.

FORMS PACK, PART 1

How to use this pack

These are the ten templates the flow relies on most. Each carries its form number, the step where it is used, and the authority it implements. Square brackets mark text to complete or delete. Delete any option that does not apply before issue; never issue a document with unresolved brackets.

Code. The Code of Good Practice: Dismissal (GN 3470, GG 53294, 4 September 2025, in force on publication) repealed Schedule 8 and the 1999 Code of Good Practice on Dismissal based on Operational Requirements (GN 1517 of 16 July 1999). Items 22–24 and Annexure A apply. Replace any reference to the 1999 Code in older materials.

Timing and route (consistent with the Operational Requirements Process Flow v1.1). The s.189(3) notice is day 0. In a facilitated s.189A process, the earliest day on which notice of termination may be given is day 61 (60 days must have passed), unless all consulting parties agree otherwise in writing (s.189A(2)(c), (7)). Notice of termination may not be given during, or run concurrently with, an employee's annual leave (BCEA s.37(5)). After failed facilitation, a dispute about the reason goes straight to the Labour Court; no conciliation is needed (NUMSA v Industrial Oleo Chemical Products [2026] ZACC 22, 29 May 2026).

POPIA. Special-status flags (R10, R23, R27) are restricted to HR and the LA and must not appear in any document given to consulting parties. Disclose only the personal information needed for s.189(3). Confidential documents are disclosed only under the R07 undertaking. Retain retrenchment files for [x] years (GBS to set; not less than the period for any dispute or claim to be finally resolved), then destroy (POPIA ss.11, 14, 26–27) (verify).

Form	Template	Used at	Main authority
R10	s.189A threshold worksheet and route memo	1.5–1.6	s.189A(1), (3)

Form	Template	Used at	Main authority
R15	Notice of possible retrenchment and invitation to consult	2.1–2.3	s.189(3); Code item 24(1)–(2), Annexure A
R17	Facilitation request cover letter to the CCMA	2.4	s.189A(3); Facilitation Regs reg 1
R18	Letter to potentially affected employees	2.5	Best practice; where there is no registered union, covering letter to the s.189(3) notice served on each employee under s.189(1)(d) and Code item 24(4)
R20	Representations register and written response letter	3.3	s.189(5)–(6)
R21	Alternatives register	3.4	s.189(2)(a), (3)(b); Code item 23(2)–(3)
R23	Selection matrix and selection query form	3.8–3.9	s.189(7); Code item 24(8)–(9)
R27	Pre-decision and timing checklist	4.1	ss.189, 189A(7)–(8)
R29	Notice of termination for operational requirements	4.4–4.6	BCEA ss.37, 41; LRA ss.189A(17), 191
R32	Re-employment preference offer	5.6	s.189(3)(h); Code item 24(16)

R10 — s.189A threshold worksheet and route memo

Complete on the proposed notice date. Keep with the file; the figures are also disclosed under s.189(3)(i)–(j).

Part A — Headcount

Item	Figure	Source and date
A1 Employing entity (registered name and number)	[ ]	[ ]
A2 Employees of that entity on [notice date], all categories	[ ]	HRIS extract [ref]
A3 Plus deemed employees under s.198A(3)(b) (TES workers placed more than three months, below the BCEA earnings threshold: R269 600.90 p.a. from 1 May 2026; check for later determinations). Inclusion is a conservative policy; LA to confirm.	[ ]	TES schedule [ref]
A4 Total headcount (A2 + A3)	[ ]	
A5 Is A4 more than 50?	[Yes / No]	If No, s.189 only; go to Part D

Part B — Scale

Headcount (A4)	Threshold number
51 – 200	10
201 – 300	20
301 – 400	30
401 – 500	40
More than 500	50

Item	Figure
B1 Applicable threshold	[ ]
B2 Number of dismissals contemplated (upper end of range)	[ ]
B3 Dismissals for operational requirements in the 12 months before the notice date (from R03)	[ ]
B4 B2 alone ≥ B1? (s.189A(1)(a))	[Yes / No]
B5 B2 + B3 ≥ B1? (s.189A(1)(b))	[Yes / No]
B6 Result	[s.189A applies / s.189 only]

Part C — Borderline and change risk

C1 Could the number contemplated rise during consultation? [Yes / No] — reasons: [ ]

C2 Are further retrenchments likely within 12 months? [Yes / No] — if yes, record here and in R03.

C3 Uncertainty in headcount or look-back data: [ ]

C4 If the result is s.189 only but C1–C3 show real risk, the policy default is to treat the matter as s.189A. Where s.189A is applied by policy only, CCMA facilitation may be unavailable (use a private facilitator by agreement), and R29 para 8 must use the s.189 dispute wording. LA to confirm. Decision: [ ]

Part D — Route memo

Question	Answer and reasons
D1 Track	[3A s.189 only / 3B s.189A facilitated / 3C s.189A not facilitated / s.189 applied as s.189A by policy (C4): s.189 dispute routes apply]
D2 If s.189A: will the employer request facilitation in the notice?	[Yes / No] — factors: scale; number of consulting parties; relationship history; strike risk; complexity of disclosure. [Policy-only s.189A (C4): CCMA may refuse to appoint; use a private facilitator by agreement.]
D3 Private facilitator by agreement (s.189A(4))?	[ ]
D4 Consulting parties identified (from R02)	[ ]
D5 Collective or bargaining council agreement regulating the process?	[None / details — it prevails]

Question	Answer and reasons
D6 Key dates	Notice [day 0]; day 15 [ ]; day 30 [ ]; day 60 [ ]; earliest notice of termination if facilitated: day 61 [ ]

Signed: _____ Date: _____

Name and capacity: [ERO]

Legal Adviser sign-off: _____ Date: _____



R15 — Notice of possible retrenchment and invitation to consult

Issue on the employer's letterhead. Deliver to every consulting party identified in R02 with the disclosure pack. The date of delivery is day 0. Where there is no registered union whose members are likely to be affected (or for employees outside a union in a partly unionised workplace), serve this notice on each employee likely to be affected, or on representatives they have already nominated (s.189(1)(d); Code item 24(4)); R18 is then the covering letter.

To: [registered trade union / workplace forum / nominated representatives / each employee listed in Schedule 1]

Date: [ ]

Reference: [ ]

NOTICE IN TERMS OF SECTION 189(3) OF THE LABOUR RELATIONS ACT 66 OF 1995: POSSIBLE DISMISSALS FOR OPERATIONAL REQUIREMENTS

1. [Employer] ("the company") is contemplating the possibility of dismissals for reasons based on its operational requirements. No decision has been taken. The company invites you to consult with it, with a view to reaching consensus, on the matters set out in section 189(2) of the Act: measures to avoid the dismissals, to minimise their number, to change their timing and to mitigate their adverse effects; the method for selecting employees; and severance pay.

2. This notice is given under section 189(3) of the Act and follows the form of Annexure A to the Code of Good Practice: Dismissal, 2025. It contains the relevant information available to the company at this date. Further information will be provided as it becomes available, and you may request any other information you consider relevant.

3. Reasons for the proposed dismissals (s.189(3)(a); Annexure A item 2)

[Describe the economic, technological, structural or similar needs, with figures and time periods. Refer to the documents in the disclosure pack by number.]

4. Alternatives considered and reasons for rejecting each (s.189(3)(b); Annexure A item 3)

Alternative considered	Reason it is not proposed at this stage	Pack ref
[e.g. natural attrition and recruitment freeze]	[ ]	[ ]
[e.g. ending TES and contractor use]	[ ]	[ ]
[e.g. short time or reduced hours]	[ ]	[ ]
[e.g. redeployment to vacancies]	[ ]	[ ]
[e.g. voluntary severance or early retirement]	[ ] (the company proposes to consult on this)	[ ]

The company will consider any other alternative you propose, and those listed above remain open for consultation.

5. Number of employees likely to be affected and job categories (s.189(3)(c); Annexure A item 1)

Job category	Site / unit	Current number	Number likely to be affected
[ ]	[ ]	[ ]	[ ]
[ ]	[ ]	[ ]	[ ]
Total		[ ]	[range]

6. Proposed method for selecting employees (s.189(3)(d); Annexure A item 4)

[e.g. Within each affected job category, last in first out, subject to the retention of employees with the skills listed in Schedule 2 for the reasons given there.] The company proposes these criteria for consultation. If criteria are not agreed, it will apply criteria that are fair and objective. No selection will be based on union membership or activity, pregnancy or any other prohibited ground.

7. Timing (s.189(3)(e); Annexure A item 5)

Any dismissals are likely to take effect [on or after date / during period]. [s.189A: No notice of termination will be given before the periods in section 189A(7) / (8) have elapsed (facilitated: not before day 61).]

8. Proposed severance pay (s.189(3)(f); Annexure A item 6)

[One week's remuneration for each completed year of continuous service, as required by section 41 of the BCEA / an enhanced amount of ...], in addition to notice pay, accrued leave pay and other amounts due.

9. Assistance proposed (s.189(3)(g); Annexure A item 7)

[e.g. EAP counselling; financial advice; outplacement; CV and interview support; reasonable paid time off to seek work; help with UIF claims; training.]

10. Possibility of future re-employment (s.189(3)(h); Annexure A item 8)

[e.g. For [12] months after termination, retrenched employees will be offered comparable vacancies first. Contact will be kept through the details they provide.]

11. Employees and prior retrenchments (s.189(3)(i)–(j); Annexure A item 9)

The company employs [ ] employees. In the 12 months before this notice it dismissed [ ] employees for reasons based on its operational requirements.

12. Section 189A [delete whichever does not apply]

- [Section 189A of the Act does not apply to the proposed dismissals because [reason].]
- [Section 189A applies. The company requests the CCMA to appoint a facilitator under section 189A(3)(a) and is filing the prescribed form today.]
- [Section 189A applies. The company does not request facilitation. Consulting parties representing the majority of the employees whom the company contemplates dismissing may request facilitation by notifying the CCMA within 15 days of this notice (section 189A(3)(b)).]

13. Consultation arrangements

The company proposes a first meeting on [date, time, venue or link] [s.189A facilitated: on the date set by the facilitator]. Please confirm your representatives by [date]. The company invites written representations on any matter in this notice or relating to the proposed dismissals, and will respond in writing to any written representation.

14. Information and confidentiality

The documents listed in Schedule 3 are attached. Documents marked confidential are disclosed on the terms of the attached undertaking (R07). Please send any request for further information to [contact] in writing.

Signed: _____ Date: _____

Name and capacity: [Authorised signatory, per R05]

Schedules: 1 Recipients · 2 Skills retention list and reasons · 3 Disclosure index (R12)

R17 — Facilitation request cover letter to the CCMA

Attach a completed LRA 7.20 and the s.189(3) notice. Serve and file in accordance with the CCMA Rules and keep proof of service on every consulting party.

To: The Director, CCMA, [regional office]

Date: [ ]

REQUEST FOR FACILITATION IN TERMS OF SECTION 189A(3)(a) OF THE LABOUR RELATIONS ACT

1. [Employer], which employs [ ] employees, gave notice under section 189(3) on [date] of the possible dismissal of up to [ ] employees for operational requirements. A copy is attached.

2. The company requested facilitation in that notice and asks the Commission to appoint a facilitator under section 189A(3)(a). The completed LRA 7.20 is attached.

3. The consulting parties, and their contact details, are: [ ].

4. The company proposes the following dates for the first facilitation meeting, for consultation with the parties under regulation 2(1)(b): [ ].

Signed: _____ Date: _____

Name and capacity: [LA / authorised signatory]

R18 — Letter to potentially affected employees

Deliver on day 0. Union or workplace-forum case: deliver after the notice has been served on the consulting parties and attach a copy (best practice). No registered union: this letter is the covering letter to the s.189(3) notice (R15), which must itself be served on each employee likely to be affected (s.189(1)(d); Code item 24(4)); keep proof of service on each employee.

Dear [name / colleague]

PROPOSED RESTRUCTURING — CONSULTATION HAS STARTED

[Union or workplace forum: Today the company gave the attached notice to [union / workplace forum].] [No registered union: Today the company gave you the attached notice under section 189(3) of the Labour Relations Act. You are invited to consult on it, personally or through representatives you nominate. Please tell [contact] by [date] who your representatives are.] The notice explains that the company is considering changes that may lead to job losses in [areas]. Your position is in a job category that may be affected.

No decision has been made. The purpose of consultation is to look for ways to avoid or reduce job losses, and to agree how any affected employees would be selected and supported.

[Your union, [name], will represent its members in the consultation.] [Partly unionised: Employees who are not members of [union] have each received the notice personally and may consult personally or through representatives they nominate; please tell [contact] by [date].] You may also make your own representations in writing to [contact].

Support is available now through [EAP details]. If you have questions, please contact [name, contact].

We will keep you informed as consultation continues.

Signed: _____ Date: _____

Name and capacity: [HR Manager]

R20 — Representations register and written response

Every representation is logged. Every written representation receives a written response, with reasons where the company disagrees (s.189(6)(a)–(b)); target 5 working days.

No.	Date received	From	Written / oral	Summary	Employer response and reasons	Response date and form
1	[ ]	[ ]	[ ]	[ ]	[ ]	[ ]
2						
3						

Written response letter

To: [consulting party] Date: [ ] Your letter of: [date]

Thank you for your representations of [date]. The company has considered each point carefully and responds as follows.

Your proposal or point	Company response	Reasons (where the company does not agree)
[ ]	[Accepted / accepted in part / not accepted at this stage]	[ ]
[ ]	[ ]	[ ]

The company remains willing to discuss these matters further at the next meeting on [date], and to consider any further proposal.

Signed: _____ Date: _____

Name and capacity: [ERO / authorised signatory]

R21 — Alternatives register

Updated after every meeting and whenever facts change. This register is the main evidence that dismissal was a last resort.

No.	Alternative	Proposed by and date	Saving / effect on numbers	Cost and feasibility	Status	Reasons	Minute ref
1	[ ]	[ ]	[ ]	[ ]	[Adopted / partly adopted / rejected / under review]	[ ]	[ ]
2							
3							

Checklist of alternatives to consider: natural attrition · recruitment freeze · ending TES and contractor use · reduced overtime · short time · reduced hours · redeployment · retraining · voluntary severance · early retirement · wage or bonus freeze by agreement · relocation · bumping · job sharing · temporary lay-off by agreement · deferring timing.

R23 — Selection matrix and selection query form

Part A — Criteria

Criterion	Agreed or fair and objective?	Definition and data source	Weighting or order
[Length of continuous service]	[ ]	[Start date from HRIS; breaks treated as ...]	[ ]
[Retention of skills]	[ ]	[Skills list in Schedule 2 of notice]	[ ]
[Qualifications]	[ ]	[ ]	[ ]

Part B — Matrix (one per pool)

Employee no.	Job category / pool	Service date	Skills retention (Y/N and reason)	Other criteria	Result (retain / provisionally selected)	Special-status flag checked (LA)
[ ]	[ ]	[ ]	[ ]	[ ]	[ ]	[ ]

POPIA: the special-status flag column is restricted to HR and the LA. Remove it from any copy of the matrix given to consulting parties or employees.

Prepared by: _____ Checked by: _____ Date: _____

Part C — Selection query form (employee)

Name: [ ] Employee no.: [ ] Date: [ ]

I query my provisional selection because: [e.g. service date is wrong; my skills were not recorded; I am in the wrong pool; other]

Supporting information attached: [ ]

Employer decision and reasons: [ ] Decided by: [ ] Date: [ ]



R27 — Pre-decision and timing checklist

Complete before the decision memo (R28) is signed. Any "No" must be resolved or explained in writing by the Legal Adviser.

#	Check	Yes / No	Evidence
1	Notice covered every s.189(3)(a)–(j) item and was served on every consulting party (no registered union: on each employee likely to be affected, s.189(1)(d))		R15, R16
2	All relevant information requested was disclosed or refused on a lawful ground		R12
3	Each s.189(2) topic was consulted on: avoid, minimise, timing, mitigate, selection, severance		R19 minutes
4	Every written representation has a written response with reasons		R20
5	Alternatives register is complete and up to date		R21
6	Selection criteria agreed, or fair and objective and explained; applied consistently; queries decided		R11, R23
7	Special-status flags reviewed (pregnancy, union office, disclosures, discipline or incapacity cases, TES, transfer); flags held by HR/LA only and not disclosed to consulting parties (POPIA)		Screening checklist
8	EE impact assessed; no protected ground drives selection		HR note
9	Final numbers do not exceed those in the notice (if higher, fresh notice issued)		R28 draft
10	Alternative positions offered where available; refusals recorded		R24
11	s.189A facilitated: 60 days from the date of the s.189(3) notice have passed (earliest notice of termination: day 61), or a different period has been agreed in writing by all consulting parties under s.189A(2)(c) (LA to sign off)		R14, R26
12	s.189A not facilitated: day 30 passed, referral made, and s.64(1)(a) period elapsed		Referral, certificate
13	No reasonable extension request is outstanding		R25
14	Consensus or impasse recorded, with the employer's final position and reasons		R26

#	Check	Yes / No	Evidence
15	Termination date and notice period checked against leave records: notice not given during, and not running concurrently with, annual leave (BCEA s.37(5)); notice in writing and at least the s.37(1) minimum		Leave records, R29

ERO: _____ LA: _____ Date: _____

R29 — Notice of termination for operational requirements

Hand over at the individual final meeting (step 4.4). For s.189A, do not date or deliver before the gate in R27 items 11–12 is passed (facilitated: not before day 61). Notice must be in writing and may not be given during, or run concurrently with, annual leave (BCEA s.37(5)). Minimum notice (s.37(1)): 1 week (6 months' service or less), 2 weeks (more than 6 months but not more than 1 year), 4 weeks (1 year or more, or a farm or domestic worker employed more than 6 months), unless the contract or a collective agreement gives more. Para 8, facilitated route per NUMSA v Industrial Oleo Chemical Products [2026] ZACC 22 (29 May 2026): direct referral to the Labour Court; no conciliation required (LA to confirm when the 90 days start). Where s.189A was applied by policy only (R10 C4), use the s.189 wording in para 8.

To: [name] Employee no.: [ ] Date: [ ]

NOTICE OF TERMINATION OF EMPLOYMENT FOR OPERATIONAL REQUIREMENTS

1. On [date] the company gave notice under section 189(3) of the Labour Relations Act of possible dismissals for operational requirements, and consulted [consulting parties] from [date] to [date]. [Summary of outcome: e.g. agreement was reached on … / the parties did not reach agreement on …]

2. Despite the alternatives considered, including [main alternatives], the company has decided that [your position of [position] in [unit] is redundant / the number of [job category] posts in [unit] must be reduced from [x] to [y], and you have been selected as set out below] for the reasons set out in the notice and in the company's written responses during consultation.

3. You were selected by applying the following criteria: [criteria], which were [agreed with / consulted on with] [consulting party]. [You were offered the alternative position of … on [date], which you declined.]

4. Your employment will terminate on [date]. This letter gives you [ ] weeks' notice in terms of [section 37 of the BCEA / your contract / the collective agreement]. [You are not required to work your notice period and will be paid in lieu.]

5. You will be paid: severance pay of [ ] ([ ] completed years of continuous service × one week's remuneration [or enhanced basis]); notice pay [if in lieu]; accrued leave pay for [ ] days; [other amounts]. Tax will be deducted in accordance with a tax directive. [Where an alternative was declined: The company [considers your refusal reasonable and severance is payable] / [considers your refusal unreasonable for the reasons in its letter of [date]; in terms of section 41(4) of the BCEA no severance pay is payable].]

6. You will receive a certificate of service and the UI-19 and other documents needed to claim unemployment insurance benefits. Your [retirement fund / group risk / medical scheme] options are set out in the attached schedule.

7. The company will provide the following assistance: [ ]. For [12] months you will be offered first preference for comparable vacancies; please keep your contact details up to date with [contact].

8. If you dispute the fairness of your dismissal: [delete whichever does not apply]

- [s.189 only] you may refer a dispute to the CCMA or a bargaining council with jurisdiction within 30 days of the date of dismissal. A dispute about the amount of severance pay only may be referred to the CCMA or council under section 41(6) of the BCEA.
- [s.189A] a consulting party may apply to the Labour Court under section 189A(13) about procedure within 30 days of this notice; a dispute about the reason may be referred to the Labour Court [within 90 days of this notice (facilitated)] [within 90 days after the CCMA or council certified that the dispute referred on [date] remained unresolved (section 191(11)) (not facilitated)], unless your union gives notice of a strike over the dismissals.

Please return all company property by [date]. We thank you for your service.

Signed: _____ Date: _____

Name and capacity: [Authorised signatory]

Received by employee: _____ Date: _____

R32 — Re-employment preference offer

To: [name] Date: [ ]

OFFER OF RE-EMPLOYMENT

Your employment ended on [date] for operational requirements. As undertaken during consultation, the company is offering you first preference for the following vacancy, which is comparable to your former position:

Position	Location	Remuneration and key terms	Start date
[ ]	[ ]	[ ]	[ ]

Please tell us by [date — at least 5 working days] whether you accept. If we do not hear from you by then, the position may be offered to other candidates. [Any severance paid will / will not be affected: state agreed position.]

Signed: _____ Date: _____

Name and capacity: [HR Manager]

Document control and revision history

Watch item: Labour Law Amendment Bill, 2025 (published for comment February 2026; proposes two weeks' severance per completed year, CCMA facilitation rules and changes to the s.189A dispute routes). Not law at 19 October 2026: s.41(2) one week per completed year still applies. Revise R15 para 8, R17 and R29 paras 5 and 8 if enacted.

Revision history — v1.1 (19 October 2026)

#	Finding (severity)	Where	Change made
1	R18 wrong authority and non-union sequence (Major)	Index R18; R18 instruction, para 1, para 3; R15 instruction; R27 item 1	Index authority now "Best practice; where there is no registered union, covering letter to the s.189(3) notice served on each employee under s.189(1)(d) and Code item 24(4)". R18 split into union and no-union options; no-union text says the employee has been given the notice and may nominate representatives. R15 and R27 item 1 require personal service where there is no union.
2	R20 cites s.189(6)(b) for reasons (Minor)	R20 intro	Now "with reasons where the company disagrees (s.189(6)(a)–(b))".
3	R27 item 11 period variation unclear (Minor)	R27 item 11; R10 D6; R15 para 7; R29 instruction; How to use	Requires written agreement of all consulting parties (s.189A(2)(c)), LA sign-off; earliest notice of termination day 61, in line with the Process Flow v1.1.
4	R29 para 8 not-facilitated route has no time limit (Minor)	R29 para 8, s.189A bullet	Now "within 90 days after the CCMA or council certified that the dispute referred on [date] remained unresolved (section 191(11))".
5	R29 silent on BCEA s.41(4) declined alternative (Minor)	R29 para 5	Added reasonable/unreasonable refusal option with s.41(4) wording.
6	R10 C4 policy-only s.189A consequences (Minor)	R10 C4, D1, D2; R29 instruction	Warns CCMA facilitation may be unavailable (private facilitator by agreement) and that s.189 dispute wording applies.
7	Record Industrial Oleo authority (Improvement)	R29 instruction; How to use	Guidance cites NUMSA v Industrial Oleo Chemical Products [2026] ZACC 22: direct referral, no conciliation. "Within 90 days of this notice" kept (conservative).

#	Finding (severity)	Where	Change made
8	BCEA s.37 notice rules missing (Improvement)	R29 instruction; R27 new item 15; How to use	Added: in writing; not during or concurrent with annual leave (s.37(5)); 1/2/4-week minimums (s.37(1)).
9	No POPIA controls (Improvement)	How to use; R23 Part B note; R27 item 7	POPIA handling note: flags HR/LA only, minimum disclosure, R07 undertaking, retention period; R23 flag column removed from disclosed copies.
10	R10 A3 threshold figure not stated (Improvement)	R10 A3	States R269 600.90 p.a. from 1 May 2026; inclusion marked as conservative policy, LA to confirm.
11	No gazette reference for the 2025 Code (Improvement)	Cover subtitle; How to use	Added GN 3470, GG 53294, 4 Sept 2025; repeal of Schedule 8 and GN 1517 (1999) noted.
12	Labour Law Amendment Bill, 2025 watch item (Improvement)	Document control	Watch item added; s.41(2) one week per year remains the law.
13	"Redundant" inaccurate for pool selection (Improvement)	R29 para 2	Option added: reduction of posts from [x] to [y] and selection.
14	s.41(6) severance-only route (Improvement)	R29 para 8, s.189 bullet	Added s.41(6) sentence.
O1	Open: start of 90-day period after failed facilitation	R29 para 8	Commentary divided (receipt of notice v. date of dismissal); "of this notice" kept as the earlier date; LA to confirm.
O2	Open: s.198A(3)(b) deemed employees in s.189A headcount	R10 A3	No authority found; kept as conservative policy (verify).
O3	Open: POPIA retention period and section references	How to use	GBS to set [x] years; POPIA section numbers marked (verify).
O4	Open: s.191(12) election to arbitrate; primary s.189A text	R29 para 8; R27 item 11	Not added / not re-verified against the Act text; LA to confirm.
O5	Open: author questions (collective agreements; partly unionised policy; who signs a period variation; policy-only s.189A intent; Bill tracking)	R10 C4, D5; R18; R27 item 11	Options left in brackets for GBS decision.

These templates are working documents for legal review, not legal advice. Adapt them to any collective agreement, bargaining council agreement or facilitator direction that applies.